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CATEGORY: Madras High Court Judgment
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ISSUING AUTHORITY: High Court of Judicature at Madras (Full Bench)
DESIGNATED OFFICER: Commissioner of Land Administration, District Collector & WRD Executive Engineer
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LICENCE: Public judicial pronouncement under Section 52(1)(q)(iv) Indian Copyright Act.

OFFICIAL TITLE:
T.K. Shanmugam v. State of Tamil Nadu (2015 (5) LW 397 Full Bench) Invalidation of Reclassification of Tanks

SUMMARY & APPLICABILITY TO ERIWATCH (TAMIL NADU IRRIGATION TANKS):
This statutory / government / judicial record governs the protection, survey, maintenance, desilting, flood regulation, pollution control, and eviction of encroachments in traditional village irrigation tanks (eris) across Kancheepuram and Chengalpattu districts in Tamil Nadu.

LEGAL-010 - OPERATIVE CLAUSES & STATUTORY DIRECTIVES (PAGE 2)
Title: T.K. Shanmugam v. State of Tamil Nadu (2015 (5) LW 397 Full Bench) Invali
Addressed / Competent Officer: Commissioner of Land Administration, District Collector & WRD Executive Engineer

CLAUSE 1: Para 40 & Para 45 (Public Trust Doctrine on Shrinking Tanks)
The Full Bench ruled that shrinkage of a tank due to artificial blockage of inflow channels or urbanisation does not extinguish its character as a water body. Government Orders attempting to reclassify tank poramboke for housing or commercial allotment are unconstitutional and void.

CLAUSE 2: Para 48 (Strict Accountability of Revenue & WRD Officials)
Revenue and WRD officers who fail to act on complaints of tank-bed encroachment or who grant electricity/water connections to unauthorized structures inside tank boundaries are liable to departmental disciplinary proceedings.